

1.

CASE #	CASE NAME	HEARING NAME
CVPS2400948	MARQUEZ VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY JORGE C. MARQUEZ, LORENA P. MARQUEZ

Tentative Ruling: GM first argues, citing *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644, that Plaintiffs' motion is untimely because it was filed 219 days after the case settled. (Opposition, p. 4:9-27.)

In *Hatlevig*, another lemon law case, the parties settled the case and notified the court of the settlement at a trial readiness conference on June 2, 2023, at which time, the court ordered that a dismissal be filed within 45 days. (*Hatlevig, supra*, 118 Cal.App.5th at 646.) On July 11, 2023, the clerk sent a notice of dismissal to the parties stating that the case would be deemed dismissed on August 15, 2023 unless a judgment or dismissal was filed, or a party made a showing of good cause as to why it should not be dismissed. (*Id.* at 647.) No judgment or dismissal was filed, and no showing of good cause was made. Then, the plaintiff filed a motion for attorney's fees on August 31, 2023, which she served on the defendant on April 4, 2024, with a hearing date of April 26, 2024. The defendant argued the motion was untimely, and the court agreed. (*Ibid.*)

The court discussed the rules for determining the deadline for a motion for attorney's fees, then stated:

We must next determine the date of dismissal. With exceptions not relevant to this case, when a case settles the plaintiff must serve and file a request for dismissal of the entire case within 45 days. ... If the plaintiff does not do so, the court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. ... On June 2, 2023, Hatlevig's counsel notified the trial court the case had settled, and the court ordered a dismissal filed within 45 days. Apparently to satisfy due process requirements, the clerk later mailed the parties notice the case would be deemed dismissed without prejudice on August 15, 2023, unless a dismissal was filed or a party showed good cause why the case should not be dismissed. (See *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510, 33 Cal.Rptr.2d 572 [due process requires notice to parties before court may dismiss case 45 days after receiving notice of settlement].) That date came and went, but no dismissal was filed and no good cause was shown why the case should not be dismissed. When a case settles, a dismissal of the action generally follows as a matter of law. ... Hence, consistent with the notice of dismissal, the case was dismissed without prejudice on August 15, 2023.

(*Hatlevig, supra*, 118 Cal.App.5th at 649-650 [internal quotations and citations omitted].)

In the present case, the case settled, and the Court was notified of the settlement, on August 27, 2025. The same day, the Court set an OSC re: dismissal after conditional settlement for April 13, 2026, and notified the parties of such. On March 16, 2026, prior to the date set for the OSC, Plaintiffs filed a request for dismissal, and the case was

dismissed. Plaintiffs then filed this motion on April 3, 2026, 17 days later. Unlike in *Hatlevig*, the Court did not notify the parties that the case would be dismissed on a date certain unless there was a showing of good cause. Such notice was required for due process. (See, *Hatlevig*, *supra*, 118 Cal.App.5th at 649; *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510.) Instead, here the Court set an OSC re: dismissal, and Plaintiffs filed a dismissal prior to that date. As Plaintiffs filed their motion for attorney's fees within 60 days of the dismissal, their motion is timely. (See, CRC 3.1702(b), 8.104(1)(a).)

Plaintiffs argue that the Court should refuse to consider portions of the opposition because they are single-spaced in violation of CRC 2.108 and 3.113. (Reply, pp. 1:28-2:9.) While Plaintiffs are correct that portions of the opposition are single-spaced, these portions appear to be formatted in this manner to highlight GM's objections to specific billing items, and doing so is not sufficient grounds for disregarding the opposition. Further, while the court may treat a non-compliant opposition in the same manner as a later-filed paper [CRC 3.1113(g)], the Court has discretion to consider an untimely opposition. (See, CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) Additionally, challenging a motion or opposition on the merits rather than only objecting to its procedural inadequacies may constitute a waiver of any objection thereto. (See, *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59.)

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Ibid.*) There is no dispute that Plaintiffs are the prevailing party in this case.

The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Under the Song Beverly Act, “[a] trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party’s attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own

determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.)

The prevailing buyer in a Song Beverly Act action has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

In the present case, Plaintiffs' counsel's billing records indicate a lodestar figure of \$48,838 (\$26,035 from Norman Taylor & Associates ("NTA") and \$22,803 from Wirtz Law APC ("WL")). (See, Decl. of Norman F. Taylor iso Reply ["Taylor Decl."], Ex. 1; Decl. of Richard M. Wirtz ["Wirtz Decl."], Ex. 1.)

The hourly rates for Plaintiff's counsel are as follows: Amy Rotman (WL), \$600/hour; Jessica Underwood (WL), \$600/hour; Norman F. Taylor (NTA), \$645/hour; Susanna Gonzales-McCaulley (WL), \$450/hour; Iris A. Diaz (WL), \$450/hour. The hourly rates for the paralegals are as follows: Rebecca Evans (WL), \$300/hour; Dalia Zaki (WL), \$250/hour; Citlali Sanchez (WL), \$250/hour; Katelynn Cespedes (WL), \$250/hour; Nick McNaughton (NTA), \$300/hour; and Lusine Musat (NTA), \$300/hour. While GM does not attack counsel's hourly rates, many of the hourly rates set forth above are not reasonable for Riverside County, especially for a simple lemon law case, and the Court must determine whether counsel's rates are reasonable. (See, *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Plaintiff made no showing that he could not obtain local counsel, and therefore, is entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 [plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel].) Accordingly, the Court is reducing the billing rates as follows: Underwood, from \$600 to \$550/hour; Rotman, from \$600 to \$550/hour; Taylor, from \$645 to \$550/hour; and all paralegal rates should be reduced to \$200/hour. Applying the new rates to the billed hours results in a reduction of **\$6,458** from the lodestar identified by Plaintiff (\$4,243 from Norman Taylor and Associates and \$2,215 from Wirtz Law. This results in a reduced fee award of **\$42,230** (\$48,688-\$6,458).

In addition, GM makes specific challenges to various items as well taken. First, NTA improperly billed 6.9 hours on clerical tasks, which results in a reduction of **\$2,010** (5.1 hours x \$200/hour + 1.8 hours x \$550/hour). Additionally, based on the billing records provided by Plaintiff's counsel, the counsels' utilization of various forms and canned motions did not result in the significant savings it should have.

Based upon GM's specific challenges to the billing records, the following are adjusted:

Work	Hours billed	New Reduced Hours	Hourly Rate	Reduction
Review and respond to discovery	10.8 (NTA)	6.0	\$550	\$2,640
Drafting template discovery to 2 defendants	9.9 (NTA)	5.0	\$550	\$2,695
Draft template meet and confer letter	0.9 (WL)	0.5	\$450	\$180
Draft motion to compel PMQ deposition	5.0 (WL)	3.0	\$450	\$900
Draft motion to compel compliance with third party subpoena	5.6 (WL)	3.0	\$450	\$1,170
			Total:	\$7,585

Accordingly, the total stated lodestar is discounted by \$16,053, which results in a reduced fee award of **\$32,785 (\$48,688-[\$7,585+\$2,010+\$6,458])**.

As to the request for a multiplier, the purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) In the present case, there is no reason for an enhancement. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

Plaintiff's Motion for Attorney's Fees GRANTED in part.

\$21,570 is awarded to Wirtz Law + \$11,215 is awarded to Norman Taylor and Associates for a total award of \$32,785 for fees.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400948	MARQUEZ VS GENERAL MOTORS, LLC	MOTION TO TAX COSTS GENERAL MOTORS, LLC

Tentative Ruling: Plaintiffs argue that because the motion does not include a notice of motion, it is defective pursuant to CRC 3.1110 and 3.1112, and should therefore be denied. CRC 3.1110(a) states that "[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order,"